Candidate Confidentiality & Non-Disclosure Agreement

> **Counsel-review draft — not legal advice.** Before production use, replace the bracketed Company entity details and have qualified counsel review this template for the Company's business model, recruiting process, and applicable jurisdictions.

Version: CLOUT-NDA-2026-10-06
Effective Date: _____

This Candidate Confidentiality & Non-Disclosure Agreement (the **"Agreement"**) is entered into by and between **[FULL LEGAL COMPANY ENTITY NAME]**, doing business as **Clout**, a **[STATE AND ENTITY TYPE]**, with its principal business address at **[ADDRESS]** (the **"Company"**), and **[CANDIDATE FULL LEGAL NAME]** (the **"Candidate"**).

1. Purpose

Candidate may receive Confidential Information while applying for, evaluating, discussing, or performing a possible employment, contractor, venue, event, creator, or other business relationship with the Company (the **"Purpose"**). Candidate agrees to protect and use Confidential Information only as this Agreement permits.

2. Confidential Information

"Confidential Information" means non-public information disclosed by or on behalf of the Company, in any form, including information about:

- Clout's product, technology, software, data, systems, security measures, and analytics;
- member, guest, employee, applicant, creator, promoter, vendor, venue, and partner information;
- venue operations, events, staffing, guest lists, reservations, preferences, and service practices;
- business plans, pricing, revenues, expenses, financial information, marketing, concepts, campaigns, and strategy; and
- all notes, summaries, analyses, and materials derived from the foregoing.

Confidential Information includes information marked confidential and information that a reasonable person would understand to be confidential based on its nature or the circumstances

of disclosure.

3. Candidate Obligations

Candidate will:

1. use Confidential Information only for the Purpose;
2. protect Confidential Information using at least reasonable care;
3. not disclose Confidential Information to any person or organization without the Company's prior written consent;
4. not copy, download, photograph, record, transmit, publish, post, or retain Confidential Information except as expressly authorized for the Purpose; and
5. promptly notify the Company of any actual or suspected unauthorized use or disclosure.

4. Exclusions

Confidential Information does not include information that Candidate can document:

1. was publicly available through no breach of this Agreement;
2. was lawfully known to Candidate before disclosure by the Company;
3. was independently developed without using Confidential Information; or
4. was lawfully received from a third party without a duty of confidentiality.

5. Required Disclosures

If Candidate is required by law, regulation, or valid legal process to disclose Confidential Information, Candidate will, to the extent legally permitted, give the Company prompt written notice and reasonably cooperate with the Company's efforts to seek protective treatment. Candidate will disclose only the portion legally required.

6. Ownership; Return and Deletion

All Confidential Information remains the Company's property. This Agreement grants Candidate no license or ownership interest in any Confidential Information or Company intellectual property. At the Company's request, Candidate will promptly return or permanently delete Confidential Information and any copies, except to the extent retention is required by law.

7. No Employment Promise

This Agreement does not constitute an offer of employment, engagement, exclusivity, partnership, joint venture, or other commitment. Either party may discontinue discussions at any time, subject to Candidate's continuing confidentiality obligations.

8. Remedies

Candidate acknowledges that unauthorized use or disclosure of Confidential Information may cause irreparable harm for which monetary damages may be insufficient. The Company may seek injunctive or other equitable relief, in addition to any other remedies available at law or equity.

9. Governing Law; Venue

This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-law principles. Any dispute arising under this Agreement will be brought exclusively in the state or federal courts located in **[COUNTY], Texas**, and Candidate consents to that jurisdiction and venue.

10. Electronic Signature; Entire Agreement

Candidate agrees that an electronic record, click-through acceptance, and typed signature may be used to evidence Candidate's consent to this Agreement to the extent permitted by applicable law. This Agreement is the entire agreement between the parties regarding Candidate's confidentiality obligations for the Purpose and may be modified only in a writing signed by both parties. If any provision is unenforceable, the remaining provisions remain in effect.

Candidate Signature

By signing below, Candidate confirms that Candidate has read, understood, and agrees to this Agreement.

Candidate full legal name	_____
Candidate signature	_____
Date	_____
Candidate email	_____

Company Acknowledgement (Optional)

Authorized representative	_____
Title	_____
Date	_____